

**STATE OF NEW YORK
DEPARTMENT OF STATE**

I hereby certify that the annexed copy for THE DEPOSITORY TRUST & CLEARING CORPORATION, File Number 240328002142 has been compared with the original document in the custody of the Secretary of State and that the same is true copy of said original.

WITNESS my hand and official seal of the
Department of State, at the City of Albany,
on February 27, 2025.

WALTER T. MOSLEY
Secretary of State



BRENDAN C. HUGHES
Executive Deputy Secretary of State



CERTIFICATE OF AMENDMENT
OF THE
CERTIFICATE OF INCORPORATION
OF
THE DEPOSITORY TRUST & CLEARING CORPORATION

Under Section 805 of the Business Corporation Law

The undersigned, for the purpose of amending the certificate of incorporation of The Depository Trust & Clearing Corporation (the "Corporation"), does hereby certify:

Paragraph 1. The name of the Corporation is The Depository Trust & Clearing Corporation. The name under which the Corporation was formed is D/N Integration Corp.

Paragraph 2. The original certificate of incorporation of the Corporation was filed on July 1, 1999. A restated certificate of incorporation was filed on February 3, 2015.

Paragraph 3. The certificate of incorporation of the Corporation, as now in effect (the "Certificate of Incorporation") is hereby amended to (i) amend the provisions of the Certificate of Incorporation relating to the aggregate number of shares that the Corporation is authorized to issue, the division of those shares into classes, and the par value of the shares in each class and (ii) amend the provisions of the Certificate of Incorporation that created and set forth the relative rights, preferences and limitations of the Common Stock of the Corporation.

Paragraph 4. In order to effect the change set forth in clause (i) of paragraph 3 above, Article 4 of the Certificate of Incorporation is hereby amended to (i) delete such Article 4 and (ii) substitute the following text between Articles 3 and 5 of the Certificate of Incorporation:

"Article 4. The aggregate number of shares of stock which the Corporation will have the authority to issue is 130,000 shares, divided into:

- (a) 90,000 shares of Common Stock, par value \$100.00 per share, divided into:
 - (i) 80,000 shares of Class A Common Stock; and
 - (ii) 10,000 shares of Class B Common Stock; and
- (b) 40,000 shares of Preferred Stock, par value \$0.50 per share, divided into:
 - (i) 10,000 shares of Series A Preferred Stock;
 - (ii) 10,000 shares of Series B Preferred Stock;
 - (iii) 1,600 shares of undesignated Preferred Stock formerly designated as Series C Preferred Stock;
 - (iv) 2,000 shares of Series D Preferred Stock; and
 - (v) 16,400 shares of initially undesignated Preferred Stock."

Paragraph 5. In order to effect the change set forth in clause (ii) of paragraph 3 above, Paragraph (a) of Article 5 of the Certificate of Incorporation is hereby amended to (i) delete such Paragraph (a) and (ii) substitute the following text immediately before Paragraph (b) of Article 5 of the Certificate of Incorporation:

“(a) Common Stock. The relative rights, preferences and limitations of the classes of Common Stock are as follows:

(1) The holders of Class A Common Stock:

(A) shall be entitled to elect all of the directors of the corporation other than the directors of the corporation which the holders of the Preferred Stock shall be entitled to elect and, in any such election of directors by the holders of Class A Common Stock, (i) each holder of Class A Common Stock shall be entitled to as many votes as shall equal the number of votes which, except for this provision on cumulative voting, such holder would be entitled to cast for the election of directors multiplied by the number of directors to be elected and (ii) each holder of Class A Common Stock may cast all of its votes for a single director or may distribute them among the number of the directors to be voted on or for any two or more of them as it may see fit;

(B) shall be entitled to vote on all other matters submitted to a vote of the shareholders of the corporation and, on any such matter, each holder of Class A Common Stock shall be entitled to one vote per share of Class A Common Stock; and

(C) shall be entitled to receive, when and if declared by the board of directors, out of the assets of the corporation which are legally available therefor, dividends payable in cash or stock or otherwise.

(2) The holders of Class B Common Stock:

(A) shall have no right to vote on any matter submitted to a vote of the shareholders of the corporation; and

(B) shall be entitled to receive, when and if declared by the board of directors, out of the assets of the corporation which are legally available therefor, dividends payable in cash or stock or otherwise.”

Paragraph 6. Prior to the effectiveness of this certificate of amendment, the Corporation had (i) 50,907.78311 issued and outstanding shares of Common Stock, par value \$100.00 per share, and (ii) 29,092.21689 unissued shares of Common Stock, par value \$100.00 per share. Upon the effectiveness of this certificate of amendment, (i) the 50,907.78311 issued and outstanding shares of Common Stock, par value \$100.00 per share, are changed on a one-for-one basis into 50,907.78311 shares of Class A Common Stock, par value \$100.00 per share, and (ii) the 29,092.21689 unissued shares of Common Stock, par value \$100.00 per share, are changed on a one-for-one basis into 29,092.21689 unissued shares of Class A Common Stock, par value \$100.00 per share. Following the effectiveness of this certificate of amendment, the Corporation

will have (i) 50,907.78311 issued and outstanding shares of Class A Common Stock, par value \$100.00 per share, (ii) 29,092.21689 unissued shares of Class A Common Stock, par value \$100.00 per share, and (iii) 10,000 unissued shares of Class B Common Stock, par value \$100.00 per share.

Paragraph 7. This certificate of amendment was authorized by a vote of the board of directors and by the required vote of all holders of shares entitled to vote thereon.

IN WITNESS WHEREOF, the undersigned has subscribed this certificate on this 20th day of March, 2024.

/s/Annette Nichols
Annette Nichols
Executive Director and Corporate Secretary
The Depository Trust & Clearing Corporation
570 Washington Boulevard
Jersey City, New Jersey 07310

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OF
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Under Section 805 of the Business Corporation Law

Filed by:

The Depository Trust & Clearing Corporation
570 Washington Boulevard
Jersey City, New Jersey 07310

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